Narendra Alias Naendra Singh vs Smt. Priya Rajput And Another on 13 March, 2024

Author: Rajeev Misra

Bench: Rajeev Misra

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:47614

Court No. - 83

Case :- CRIMINAL REVISION No. - 1253 of 2023

Revisionist :- Narendra Alias Naendra Singh

Opposite Party :- Smt. Priya Rajput And Another

Counsel for Revisionist :- Pooja Agarwal

Counsel for Opposite Party :- G.A.,Manoj Singh Rathaur

Hon'ble Rajeev Misra,J.

Heard Ms. Pooja Agarwal, the learned counsel for revisionist, the learned A.G.A. for State-opposite party 2 and Mr. R.K. Dubey, Advocate holding brief of Mr. Manoj Singh Rathour, the learned counsel representing opposite party 1.

Perused the record.

This criminal revision has been filed challenging the order dated 07.07.2018, passed by Additional Chief Metropolitan Magistrate, Court No.7, Kanpur Nagar in Case No.4769 of 2016 (Smt. Priya Rajput Vs. Narendra @ Naendra Singh and others), under Section 12 of the Protection of Women

from Domestic Violence Act, 2005 as well as order dated 02.12.2022, passed by Sessions Judge, Kanpur Nagar in Criminal Appeal No.160 of 2022 (Narendra @ Naendra Singh Vs. Smt. Priya Rajput), under Section 29 of the Protection of Women from Domestic Violence Act, 2005, whereby aforementioned appeal filed by revisionist against order dated 07.07.2018 has been dismissed.

Learned counsel for revisionist contends that the order dated 07.07.2018 passed by Additional Chief Metropolitan Magistrate, Court No.7, Kanpur Nagar is passed ex-parte against revisionist. In view of above, the appellate court in the interest of justice should have allowed the appeal and remanded the mater to the trial court for adjudication afresh after giving notice and opportunity of hearing to the revisionist. However, the appellate court has failed to do so which has resulted in miscarriage of justice.

It is then contended that it is an undisputed fact that divorce proceedings were initiated by the revisionist against opposite party 1 by way of Divorce Case No.2052 of 2019 (Narendra @ Naendra Singh Vs. Smt. Priya Rajput), under Section 13 of Hindu Marriage Act on the ground of cruelty having been committed upon the revisionist (husband) by the wife i.e. opposite party 1. The Additional Principal Judge, Family Court, Kanpur Nagar after hearing the parties decreed the suit vide judgement and decree dated 13.07.2022.

With reference to above, it is urged by the learned counsel for revisionist that divorce suit was decreed by concerned Family Court on ground that cruelty was committed by the wife i.e. opposite party 1 upon husband i.e. revisionist. In view of above, opposite party had no subsisting right to claim maintenance from revisionist. Consequently, both the orders impugned in present criminal revision are liable to be set aside by this Court.

Per contra, the learned A.G.A. for State and the learned counsel representing opposite party 1 have vehemently opposed the present criminal revision. They submit that both the orders passed by courts below are perfectly just and legal and, therefore, do not call for any interference by this Court.

Learned counsel representing opposite party 1 has invited the attention of Court to the recital contained in paragraph 9 of the judgment rendered by the appellate court and on basis thereof he submits that revisionist had due knowledge of the proceedings pending before the trial court. Yet, in spite of above, he did not appear before the court below and participate in the proceedings. As such, revisionist cannot be allowed to claim benefit of his own wrong. He further submits that findings returned by both the courts below are cogent and categorical findings which cannot be said to be illegal, perverse or erroneous on the basis of material on record. As such, no interference is warranted by this Court in present criminal revision.

Learned counsel representing opposite party 1 has adopted the arguments raised by the learned A.G.A.

When confronted with above, the learned counsel for revisionist could not dislodge the same.

Having heard the learned counsel for revisionist, the learned A.G.A. for State-opposite party 2 and the learned counsel representing opposite party 1, this Court finds that the only legal issue involved in this criminal revision is whether inspite of the decree of divorce having been granted by the concerned Family Court in favour of the revisionist on the ground of cruelty, opposite party 1 could maintain the proceedings under Section 12 of the Protection of Women from Domestic Violence Act, 2005 against revisionist.

The question that has arisen in the present criminal revision need not detain this Court for long inasmuch as the issue is no longer res integra and stands settled by the judgements of the Apex Court in Juveria Abdul Majid Patni Vs. Atif Iqbal Mansoori - (2014) 10 SCC 736 (Para 31) and Prabha Tyagi Vs. Kamlesh Devi (2022) 8 SCC 90.

In view of the categorical pronouncement of the Apex Court in aforementioned judgements that even a divorced wife is entitled to claim maintenance under Section 12 of the Protection of Women from Domestic Violence Act, 2005, this Court does not find any good ground to entertain the present criminal revision. The present revision thus fails and is liable to be dismissed.

It is, accordingly, dismissed.

Order Date :- 13.3.2024.

Rks.